



2025:DHC:453



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\* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

*Date of Decision: 21.01.2025*

+ **RC.REV. 400/2024 & CM APPL. 76188/2024**

KAILASH RAM GUPTA

.....Petitioner

Through: Mr. Dilip Kumar Santoshi, Mr. Rahul Kumar Singh, Mr. Shalendra Kumar Singh & Mr. Rakesh Kumar, Advocates.

versus

SH MANOJ

.....Respondent

Through:

**CORAM:**

**HON'BLE MS. JUSTICE TARA VITASTA GANJU**

**TARA VITASTA GANJU, J.: (Oral)**

1. The present Petition seeks to challenge an order dated 05.06.2024 [hereinafter referred to as "Impugned Order"] passed by the learned ACJ/CCJ/ARC-02, Central District, Tis Hazari Courts, Delhi. By the Impugned Order, the Leave to Defend/Contest Application filed by the Petitioner/tenant has been dismissed with respect to the premises i.e., property bearing no.9353-54. Gali Dor Wali, Tokri Wala, Azad Market, Delhi-110006 as set out in the site plan annexed with the Eviction Petition [hereinafter referred to as "subject premises"].
2. By the Impugned Order, the learned Trial Court has found that the Petitioner/tenant has failed to raise any triable issue in the matter.
3. Learned Counsel for the Petitioner/tenant has made only one submission. It is submitted that on the aspect of availability of alternate



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suitable accommodation, the learned Trial Court has been in error. Relying of the Leave to Defend/Contest Application, learned Counsel for the Petitioner/tenant submits that there are 7 rooms available on the ground floor and several rooms on the first floor, and that there is no bonafide need for the subject premises. No other challenge has been raised by the learned Counsel for the Petitioner/tenant to the Impugned Order.

4. A review of the record shows that so far as concerns the aspect of landlord-tenant relationship and the ownership of the subject premises, it is the case of the parties that the subject premises was let out in the year 1981 by the mother of the Respondent/landlord to the Petitioner/tenant. The Petitioner/tenant has admitted the tenancy and there is no challenge on the aspect of title of the Respondent/landlord. In view of this admission, the learned Trial Court has found that no triable issue has been raised on the aspect of landlord-tenant relationship or ownership.

5. On the aspect of bonafide need, it was the contention of the Respondent/landlord that the family of the Respondent/landlord consists of his wife and two sons of marriageable age, for whom space is required. It was further contended that there are other family members including married sisters of the Respondent/landlord, who visit often along with their family and that what is in occupation of the Respondent/landlord are only 3 rooms admeasuring 8 by 10 sq. ft. It was contended that the other 3 rooms are bathrooms and area is not suitable for the need of the family of the Respondent/landlord.

6. As stated above, in the Reply to the Leave to Defend/Contest Application, the Respondent/landlord has submitted that of the 7 rooms that have been referred to, 5 rooms are covered with tin shed and cannot be used



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in any manner for residential purposes. The learned Trial Court has examined the bonafide need of the Respondent/landlord and found that given that the Respondent/landlord has disclosed that he has two sons, one of whom is of marriageable age, they cannot be expected to sleep in the same room as their parents or share rooms and further rooms are required for one married sister and for the family of the other sister (decd.), who visit oftenly. The learned Trial Court, relying on the judgement in the case of **Tilak Raj v. Krishan Lal**<sup>1</sup>, has further given a finding that the accommodation for the married daughters of the Respondent/landlord is also required.

7. The learned Trial Court has undertaken an examination of this averment of the Petitioner/tenant and found that the assertion that several rooms are available, can be repelled not only from the site plan but also from the fact that the 7 rooms are not actually available for residential purposes. One room is in fact a bathroom and one is being used as the store room and the other rooms are covered with tin shed. The learned Trial Court has also found that the Petitioner/tenant has admitted the fact that only 3 rooms in the premises can be used by the Respondent/landlord. Thus, the learned Trial Court has found that no challenge has been raised on the bonafide need.

8. On the aspect of availability of alternate suitable accommodation, one other property has been mentioned by the Petitioner/tenant. The learned Trial Court has found that the Respondent/landlord has said that the said property is part of a larger property and the rooms cannot be used for residential purposes and are not suitable for him. This assertion of the Respondent/landlord has not been controverted by the Petitioner/tenant.

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<sup>1</sup> 1982 RLR Note 33



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9. The examination by a Court in a Revision Petition is limited and circumspect. The Supreme Court in ***Abid-ul-Islam v. Inder Sain Dua***<sup>2</sup>, has held that the jurisdiction of this Court is only revisionary in nature and limited in scope. The Supreme Court while interpreting the intendment of the legislature in removing two stages of Appeal that were earlier provided in the said Act has held that this is a conscious omission. The High Court is not expected to substitute and supplant its view with that of the learned Trial Court, its only role is to satisfy itself on the process adopted. Thus, the scope of revisionary jurisdiction of this Court has been limited to examine if there is an error apparent on the face of the record or absence of any adjudication by the learned Trial Court, and it is only then should the High Court interfere. The Supreme Court has also cautioned from converting the power of superintendence into that of a regular first Appeal under revisionary jurisdiction. The relevant extract of the ***Abid-ul-Islam*** case is as follows:

***“Scope of revision***

*“22. We are, in fact, more concerned with the scope and ambit of the proviso to Section 25-B(8). The proviso creates a distinct and unequivocal embargo by not providing an appeal against the order passed by the learned Rent Controller over an application filed under sub-section (5). The intendment of the legislature is very clear, which is to remove the appellate remedy and thereafter, a further second appeal. It is a clear omission that is done by the legislature consciously through a covenant removing the right of two stages of appeals.*

*23. The proviso to Section 25-B(8) **gives the High Court exclusive power of revision against** an order of the learned Rent Controller, being in the nature of superintendence over an inferior court on the decision-making process, inclusive of procedural compliance. **Thus, the High Court is not expected to substitute and supplant its views with that of the trial court by exercising the appellate jurisdiction. Its role is to satisfy***

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<sup>2</sup> (2022) 6 SCC 30



itself on the process adopted. The scope of interference by the High Court is very restrictive and except in cases where there is an error apparent on the face of the record, which would only mean that in the absence of any adjudication per se, the High Court should not venture to disturb such a decision. There is no need for holding a roving inquiry in such matters which would otherwise amount to converting the power of superintendence into that of a regular first appeal, an act, totally forbidden by the legislature.

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25. The aforesaid decision has been recently considered and approved by this Court in Mohd. Inam v. Sanjay Kumar Singhal [Mohd. Inam v. Sanjay Kumar Singhal, (2020) 7 SCC 327 : (2020) 4 SCC (Civ) 107] : (SCC pp. 340-41, paras 22-23)

“22. This Court in Sarla Ahuja v. United India Insurance Co. Ltd. [Sarla Ahuja v. United India Insurance Co. Ltd., (1998) 8 SCC 119] had an occasion to consider the scope of proviso to Section 25-B(8) of the Delhi Rent Control Act, 1958. This Court found, that though the word “revision” was not employed in the said proviso, from the language used therein, the legislative intent was clear that the power conferred was revisional power. This Court observed thus : (SCC p. 124, para 11)

‘11. The learned Single Judge of the High Court in the present case has reassessed and reappraised the evidence afresh to reach a different finding as though it was exercising appellate jurisdiction. No doubt even while exercising revisional jurisdiction, a reappraisal of evidence can be made, but that should be for the limited purpose to ascertain whether the conclusion arrived at by the fact-finding court is wholly unreasonable.’

It could thus be seen, that this Court has held, that the High Court while exercising the revisional powers under the Delhi Rent Control Act, 1958 though could not reassess and reappraise the evidence, as if it was exercising appellate jurisdiction, however, it was empowered to reappraise the evidence for the limited purpose so as to ascertain whether the conclusion arrived at by the fact-finding court is wholly unreasonable.

[Emphasis supplied]

10. The provisions of Section 14(1)(e) of the Delhi Rent Control Act,



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1958 have been provided with care by the legislature, not only is the accommodation to be 'alternate', but it is also required to be suitable. The Supreme Court in the *Shiv Sarup Gupta v. Mahesh Chand Gupta*<sup>3</sup> has held that for an Eviction Petition to fail on the ground of availability of alternate suitable accommodation, the availability of another accommodation must be suitable and convenient in all respects as the tenanted accommodation from which the landlord seeks eviction of the tenant. It was held that:

*"14. The availability of an alternative accommodation with the landlord i.e. an accommodation other than the one in occupation of the tenant wherefrom he is sought to be evicted has a dual relevancy. **Firstly, the availability of another accommodation, suitable and convenient in all respects as the suit accommodation,** may have an adverse bearing on the finding as to the bona fides of the landlord if he unreasonably refuses to occupy the available premises to satisfy his alleged need. Availability of such circumstance would enable the court drawing an inference that the need of the landlord was not a felt need or the state of mind of the landlord was not honest, sincere, and natural. **Secondly, another principal ingredient of clause (e) of sub-section (1) of Section 14, which speaks of non-availability of any other reasonably suitable residential accommodation to the landlord, would not be satisfied. Wherever another residential accommodation is shown to exist as available then the court has to ask the landlord why he is not occupying such other available accommodation to satisfy his need. The landlord may convince the court that the alternative residential accommodation though available is still of no consequence as the same is not reasonably suitable to satisfy the felt need which the landlord has succeeded in demonstrating objectively to exist. Needless to say that an alternative accommodation, to entail denial of the claim of the landlord, must be reasonably suitable, obviously in comparison with the suit accommodation wherefrom the landlord is seeking eviction.** Convenience and safety of the landlord and his family members would be relevant factors. While considering the totality of the circumstances, the court may keep in view the profession or vocation of the landlord and his family members, their style of living, their habits and the background wherefrom they come."*

[Emphasis Supplied]

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<sup>3</sup> (1999) 6 SCC 222



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11. The learned Trial Court examined the accommodation that was stated to be available and found it to be neither suitable nor available. This Court finds no infirmity with the finding given that tin sheds cannot be used for residence. The Supreme Court in the case of **Prativa Devi (Smt) v. T.V. Krishnan**<sup>4</sup> has held that tenant cannot dictate the terms of use of a property to a landlord and that the landlord is the best judge of his requirements. It is not for the Courts to dictate in what manner and how a landlord should live. This Court while relying on the **Prativa Devi** case has in the **R.S. Chadha v. Thakur Dass**<sup>5</sup> held:

*“13.1 It is settled law that the tenant cannot dictate the terms of use of a property to a landlord and that the landlord is the best judge of his requirements. It is not for the Courts to dictate in what manner and how a landlord should live. It is also not for the Courts to adjudicate that the landlord has a bonafide need or not. The Courts will generally accept the landlords need as bonafide. The Supreme Court in the case of Prativa Devi (Smt) v. T.V. Krishnan [(1996) 5 SCC 353] has directed:*

*“2. The proven facts are that the appellant who is a widow, since the demise of her husband late Shiv Nath Mukherjee, has been staying as a guest with Shri N.C. Chatterjee who was a family friend of her late husband, at B-4/20, Safdarjung Enclave, New Delhi. There is nothing to show that she has any kind of right whatever to stay in the house of Shri Chatterjee. On the other hand, she is there merely by sufferance. The reason given by the High Court that the appellant is an old lady aged about 70 years and has no one to look after her and therefore she should continue to live with Shri Chatterjee, was hardly a ground sufficient for interference. **The landlord is the best judge of his residential requirement. He has a complete freedom in the matter. It is no concern of the courts to dictate to the landlord how, and in what manner, he should live or to prescribe for him a residential standard of their own.** The High Court is rather solicitous about the age of the appellant and thinks that because of her age she needs to be looked after. Now,*

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<sup>4</sup> (1996) 5 SCC 353

<sup>5</sup> (2024) SCC OnLine Del 47



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*that is a lookout of the appellant and not of the High Court. We fail to appreciate the High Court giving such a gratuitous advice which was uncalled for. **There is no law which deprives the landlord of the beneficial enjoyment of his property. We accordingly reverse the finding reached by the High Court and restore that of the Rent Controller that the appellant had established her bona fide requirement of the demised premises for her personal use and occupation, which finding was based on a proper appreciation of the evidence in the light of the surrounding circumstances.***"

13.2 In any event, **it is only the Respondent/landlord and his family who can decide what is sufficient space as per their needs and requirements. Sufficiency of residential accommodation for any person would essentially be dependent on multiple factors, including his living standard and general status in society.** In view of the fact that admittedly the Respondent/landlord has a large family, it is not open to the Petitioner/tenant to contend that requirement of 6 rooms as pleaded by the Respondent/landlord, is not bonafide.

13.3 The Trial Court has dealt with the sufficiency of accommodation of the Respondent/landlord in the Impugned Order. This Court finds no reason to impugn these findings."

[Emphasis supplied]

12. No new contention has been placed before this Court by the Petitioner/tenant. In view of the foregoing discussion, this Court finds no infirmity with the Impugned Order.

13. CM APPL. 76188/2024 is accordingly dismissed.

14. At this stage, learned Counsel for the Petitioner/tenant requests for some time to take instructions in the mater. At his request, list on 20.02.2025 in the supplementary list.

15. In the meantime, let a complete set of the paper book be supplied to the Respondent. A copy of the complete set of paper book be also supplied to the learned Counsel who appeared on behalf of the Respondent before the learned Trial Court. The affidavit of service be filed within a week.

16. The parties shall remain present before the Court on the next date of



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hearing.

17. The parties will act based on the digitally signed copy of the order.

**TARA VITASTA GANJU, J**

**JANUARY 21, 2025/ ha**

*Click here to check corrigendum, if any*